

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

CV 12 - 2030

YOHANCE CREVELLE,

X

SUMMONS ISSUED

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
HAMADEH FATTAH, shield # 23748, POLICE
OFFICER SAMUEL CARRION, shield # 7505,
POLICE OFFICERS JOHN/JANE DOE(S),
79th precinct.

COMPLAINT

PLAINTIFF DEMAND
TRIAL BY JURY

KUNTZ, J.

LEVY, M.J.

Defendants.

X

PLAINTIFF YOHANCE CREVELLE, by his attorney DAVID A. ZELMAN, ESQ., for
his COMPLAINT, alleges upon information and belief, as follows:

I. PRELIMINARY STATEMENT

1. This is a civil rights action in which PLAINTIFF YOHANCE CREVELLE (hereinafter "CREVELLE") seeks damages to redress the deprivation, under color of state law, of rights secured to him under the Fourth, Fifth, Sixth, and Fourteenth Amendments of the United States Constitution. On or about June 13, 2011, at approximately 11:30 A.M., inside 477 Gates Avenue, Brooklyn, New York, CREVELLE was falsely arrested by Defendants, including, but not limited to, POLICE OFFICER HEMADEH FATTAH, shield # 23748, POLICE OFFICER SAMUEL CARRION, shield # 7505, and POLICE OFFICERS JOHN/JANE DOE(S) (hereinafter "Defendants"). It is alleged that Defendants falsely arrested CREVELLE and used excessive force in effecting his arrest in violation of his constitutional rights. As a result of the excessive force used by Defendants, CREVELLE suffered physical and mental injuries.

U.S. DISTRICT COURT
EASTERN DISTRICT
OF NEW YORK

2012 APR 25 PM 1:07

FILED
CLERK

II. JURISDICTION

2. Jurisdiction is conferred upon this Court by 28 U.S.C. § 1343(3) and (4), which provides for original jurisdiction in this court of all suits brought pursuant to 42 U.S.C. § 1983, and by 28 U.S.C. § 1331, which provides jurisdiction over all cases brought pursuant to the Constitution and laws of the United States. This Court has pendant jurisdiction over PLAINTIFF's state law claims.

III. PARTIES

3. CREVELLE at all times relevant hereto resided in Kings County, New York.
4. Defendant CITY OF NEW YORK (hereinafter "CITY") is a municipal corporation, incorporated pursuant to the laws of the State of New York, which operates the New York City Police Department (hereinafter "NYPD"), and as such is the public employer of the Defendant officers herein.
5. Defendant POLICE OFFICER HAMADEH FATTAH, shield # 23748 (hereinafter "FATTAH") was an NYPD officer, and at all times relevant hereto, acted in that capacity as agent, servant, and/or employee of Defendant CITY and within the scope of his employment. FATTAH is sued in his official and individual capacity.
6. Defendant POLICE OFFICER SAMUEL CARRION, shield # 7505 (hereinafter "CARRION") was an NYPD officer, and at all times relevant hereto, acted in that capacity as agent, servant, and/or employee of Defendant CITY and within the scope of his employment. CARRION is sued in his official and individual capacity.
7. Defendants POLICE OFFICERS JANE/JOHN DOE(S) (hereinafter "DOE(S)") were NYPD officers, and at all relevant times hereto, acted in that capacity as agents, servants,

and/or employees of Defendant CITY and within the scope of their employment.

DOE(S) are sued in their official and individual capacity.

8. At all relevant times hereto, Defendants were acting under the color of state and local law. Defendants are sued in their individual and official capacities. At all relevant times hereto, Defendant CITY was responsible for making and enforcing the policies of NYPD and was acting under the color of law, to wit, under the color of the statutes, ordinances, regulations, policies, customs and usages of the State of New York and/or the City of New York.

IV. FACTS

9. On or about June 13, 2011, at approximately 11:30 a.m., CREVELLE was standing in the stairway of 477 Gates Avenue, Brooklyn, New York, the building in which he was living at the time.
10. He was approached by several police officers who stopped him and searched him.
11. The police officers then maced and arrested CREVELLE with excessive force.
12. CREVELLE was transported to the 79th precinct and held in a cell for approximately eight hours.
13. CREVELLE was then released from the precinct without charges.
14. That heretofore and on the 20th day of June, 2011, CREVELLE's Notice of Claim and Intention to sue was duly served upon and filed with the CITY; said Notice was filed within ninety (90) days after the cause of action herein accrued and set forth the name and post office address of CREVELLE, the nature of the claim, the time when, the place where, the manner in which the claim arose and the items of damage and injuries sustained.

15. That at least thirty (30) days have elapsed since the demand or claim upon which these actions are predicated was presented to CITY for adjustment or payment thereof and that it has neglected and/or refused to make adjustment or payment thereof.

V. FIRST CAUSE OF ACTION
Pursuant to § 1983 (FALSE ARREST)

16. Paragraphs 1 through 16 of this complaint are hereby realleged and incorporated by reference herein.
17. That Defendants had neither valid evidence for the arrest of CREVELLE nor legal cause or excuse to seize and detain him.
18. That in detaining CREVELLE without a fair and reliable determination of probable cause, Defendant CITY abused its power and authority as a policymaker of the NYPD under the color of State and/or local law. It is alleged that CITY, via their agents, servants and employees routinely charged persons with crimes they did not commit. CREVELLE was but one of those persons.
19. Upon information and belief, it was the policy and/or custom of Defendant CITY to inadequately supervise and train its officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents and employees.
20. As a result of the above described policies and customs, the officers, staff, agents and employees of Defendant CITY believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated. In addition, the City of New York had and has a policy, custom, and/or practice of detaining persons for an excessive period of time prior to arraignment.

21. The above described policies and customs demonstrated a deliberate indifference on the part of the policymakers of the CITY to the constitutional rights of arrestees and were the cause of the violations of CREVELLE's rights alleged herein.
22. By reason of Defendants acts and omissions, Defendant CITY, acting under color of state law and within the scope of its authority, in gross and wanton disregard of CREVELLE's rights, subjected CREVELLE to an unlawful detention, in violation of the Fourth and Fourteenth Amendments of the United States Constitution and the laws of the State of New York.
23. By reason of the foregoing, CREVELLE suffered physical injuries, mental injuries, deprivation of liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.

VI. SECOND CAUSE OF ACTION
Pursuant to State Law (FALSE ARREST)

24. Paragraphs 1 through 24 are hereby realleged and incorporated by reference herein.
25. That the seizure, detention and imprisonment of CREVELLE was unlawful in that Defendants had no probable cause to detain, arrest and/or imprison him.
26. That Defendants intended to confine CREVELLE.
27. That CREVELLE was conscious of the confinement and did not consent to it.
28. That the confinement was not otherwise privileged.
29. By reason of Defendants acts and omissions, Defendants, acting in gross and wanton disregard of CREVELLE's rights, deprived him of his liberty when they subjected him to an unlawful, illegal and excessive detention, in violation of State law.

30. That by reason of the foregoing, CREVELLE suffered physical injuries, mental injuries, economic injury, deprivation of liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.

VII. THIRD CAUSE OF ACTION
Pursuant to §1983 (EXCESSIVE FORCE)

31. Paragraphs 1 through 31 are hereby realleged and incorporated by reference herein.
32. That the incident that resulted from the intentional application of physical force by Defendants constituted a seizure. That the use of excessive force in effectuating the seizure was unreasonable under the circumstances.
33. That Defendants had no legal cause or reason to use excessive force in effectuating CREVELLE's arrest.
34. That Defendants violated CREVELLE's Fourth and Fourteenth Amendment right to be free from unreasonable seizures when they used excessive force against him.
35. That at the time of the arrest or while in custody, CREVELLE did not pose a threat to the safety of the arresting officers.
36. That CREVELLE was not actively resisting arrest or attempting to evade arrest.
37. That defendant CITY, through its officers, agents, and employees, unlawfully subjected CREVELLE to excessive force while effectuating his arrest.
38. That Defendants actions were grossly disproportionate to the need for action and were unreasonable under the circumstances.
39. That by reason of Defendants acts and omissions, acting under color of state law and within the scope of his authority, in gross and wanton disregard of CREVELLE's rights, subjected CREVELLE to excessive force while effectuating his arrest, in violation of his

rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution.

40. That Defendants had the opportunity to intervene, and failed to do so, to prevent violations of CREVELLE's civil rights, including but not limited to the right to be free from the application of excessive force.

41. That upon information and belief, in 2011, Defendants and CITY had a policy or routine practice of using excessive force when effectuating arrests.

42. That upon information and belief, it was the policy and/or custom of defendant CITY to inadequately train, supervise, discipline, and/or terminate their officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents and employees.

43. That as a result of the above described policies and customs, the officers, staff, agents and employees of defendant CITY, believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

44. That the above described policies and customs demonstrate a deliberate indifference on the part of the policymakers of defendant CITY to the constitutional rights of arrestees and were the cause of the violations of CREVELLE's rights alleged herein.

45. By reason of the foregoing, CREVELLE suffered physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.

VIII. FOURTH CAUSE OF ACTION
Pursuant to State Law (EXCESSIVE FORCE)

46. Paragraphs 1 through 46 are hereby realleged and incorporated by reference herein.

47. That the incident that resulted from the intentional application of physical force by Defendants constituted a seizure.
48. That the use of excessive force in effectuating the seizure was unreasonable under the circumstances.
49. That Defendants had no legal cause or reason to use excessive force in effectuating CREVELLE's arrest or after CREVELLE was arrested and in custody.
50. That at the time of the arrest, CREVELLE did not pose a threat to the safety of the arresting officers.
51. That CREVELLE was not actively resisting arrest or attempting to evade arrest.
52. That Defendants actions were grossly disproportionate to the need for action and were unreasonable under the circumstances.
53. That by reason of Defendants acts and omissions, Defendants, acting under color of state law and within the scope of their authority, in gross and wanton disregard of CREVELLE's rights, subjected CREVELLE to excessive force while effectuating his arrest, in violation of the laws of the State of New York.
54. That Defendants had the opportunity to intervene, and failed to do so, to prevent violations of CREVELLE's civil rights, including but not limited to the right to be free from the application of excessive force.
55. By reason of the foregoing, CREVELLE suffered physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.

IX. FIFTH CAUSE OF ACTION

Pursuant to State Law (Assault and Battery)

56. Paragraphs 1 through 56 are hereby realleged and incorporated by reference herein.

57. That Defendants intended to cause harmful bodily contact to CREVELLE.
58. That defendant Defendants, in a hostile manner, voluntarily caused CREVELLE'S injuries.
59. That Defendants' contact with CREVELLE constituted a battery in violation of the laws of the State of New York.
60. That by reason of the foregoing, CREVELLE suffered physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.

X. SIXTH CAUSE OF ACTION

Pursuant to State Law (RESPONDEAT SUPERIOR)

61. Paragraphs 1 through 61 are hereby realleged and incorporated by reference herein.
62. That Defendants were acting in furtherance of the duties owed to their employer, defendant CITY.
63. That at all times Defendants were acting within the scope of their employment.
64. That Defendant CITY was able to exercise control over Defendants activities.
65. That Defendant CITY is liable for Defendants actions under the doctrine of respondeat superior. By reason of the foregoing, CREVELLE suffered physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.

INJURY AND DAMAGES

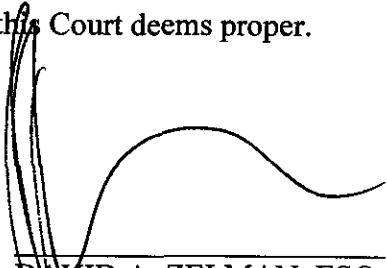
As a result of the acts and conduct complained of herein, CREVELLE has suffered and will continue to suffer, physical pain, emotional pain, suffering, permanent disability, inconvenience, injury to his reputation, loss of enjoyment of life, loss of liberty and other

non-pecuniary losses. Plaintiff has further experienced severe emotional and physical distress.

WHEREFORE, CREVELLE respectfully requests that judgment be entered:

1. Awarding CREVELLE compensatory damages in a full and fair sum to be determined by a jury;
2. Awarding CREVELLE punitive damages in an amount to be determined by a jury;
3. Awarding CREVELLE interest from June 13, 2011 and
4. Awarding CREVELLE reasonable attorney's fees pursuant to 42 USC §1988; and
5. Granting such other and further relief as to this Court deems proper.

DATED: Brooklyn, New York
April 23, 2012



DAVID A. ZELMAN, ESQ.
(DZ 8578)
612 Eastern Parkway
Brooklyn, New York 11225
(718)604-3072

CIVIL COVER SHEET

The JS 44 civil cover sheet and the information contained herein neither replace nor supplement the filing and service of pleadings or other papers as required by law, except as provided by local rules of court. This form, approved by the Judicial Conference of the United States in September 1974, is required to be filed with the clerk of court for the purpose of initiating the civil docket sheet. (SEE INSTRUCTIONS ON THE REVERSE OF THE FORM.)

I. (a) PLAINTIFFS

YOHANCE CREVELLE

(b) County of Residence of First Listed Plaintiff Brooklyn

(EXCEPT IN U.S. PLAINTIFF CASES)

(c) Attorney's (Firm Name, Address, and Telephone Number)

David A. Zelman, Esq., 612 Eastern Parkway, Brooklyn NY 11225,
718-604-3072

DEFENDANTS

CITY OF NEW YORK, POLICE OFFICER HAMADEH FATTAH,
P. O. SAMUEL CARRION, P. O. JOHN/JANE DOE(S)County of Residence of First Listed Defendant Brooklyn

(IN U.S. PLAINTIFF CASES ONLY)

NOTE: IN LAND CONDEMNATION CASES, USE THE LOCATION OF THE
LAND INVOLVED.

Attorneys (If Known)

Corporation Counsel of City of New York, 100 Church St., New
York, NY 10007

II. BASIS OF JURISDICTION

(Place an "X" in One Box Only)

☐ 1 U.S. Government
Plaintiff☒ 3 Federal Question
(U.S. Government Not a Party)☐ 2 U.S. Government
Defendant☐ 4 Diversity
(Indicate Citizenship of Parties in Item III)

III. CITIZENSHIP OF PRINCIPAL PARTIES

(For Diversity Cases Only)

(Place an "X" in One Box for Plaintiff
and One Box for Defendant)

Citizen of This State

PTF DEF

☐ 1 ☐ 1Incorporated or Principal Place
of Business in This State

PTF DEF

☐ 4 ☐ 4

Citizen of Another State

☐ 2 ☐ 2Incorporated or Principal Place
of Business in Another State☐ 5 ☐ 5Citizen or Subject of a
Foreign Country☐ 3 ☐ 3

Foreign Nation

☐ 6 ☐ 6

IV. NATURE OF SUIT

(Place an "X" in One Box Only)

CONTRACT

TORTS

FORFEITURE/PENALTY

BANKRUPTCY

OTHER STATUTES

- ☐ 110 Insurance
☐ 120 Marine
☐ 130 Miller Act
☐ 140 Negotiable Instrument
☐ 150 Recovery of Overpayment
& Enforcement of Judgment
☐ 151 Medicare Act
☐ 152 Recovery of Defaulted
Student Loans
(Excl. Veterans)
☐ 153 Recovery of Overpayment
of Veteran's Benefits
☐ 160 Stockholders' Suits
☐ 190 Other Contract
☐ 195 Contract Product Liability
☐ 196 Franchise

PERSONAL INJURY

- ☐ 310 Airplane
☐ 315 Airplane Product
Liability
☐ 320 Assault, Libel &
Slander
☐ 330 Federal Employers'
Liability
☐ 340 Marine
☐ 345 Marine Product
Liability
☐ 350 Motor Vehicle
☐ 355 Motor Vehicle
Product Liability
☐ 360 Other Personal
Injury

PERSONAL INJURY

- ☐ 362 Personal Injury -
Med. Malpractice
☐ 365 Personal Injury -
Product Liability
☐ 368 Asbestos Personal
Injury Product
Liability

PERSONAL PROPERTY

- ☐ 370 Other Fraud
☐ 371 Truth in Lending
☐ 380 Other Personal
Property Damage
☐ 385 Property Damage
Product Liability

- ☐ 610 Agriculture
☐ 620 Other Food & Drug
☐ 625 Drug Related Seizure
of Property 21 USC 881
☐ 630 Liquor Laws
☐ 640 R.R. & Truck
☐ 650 Airline Regs.
☐ 660 Occupational
Safety/Health
☐ 690 Other

LABOR

- ☐ 710 Fair Labor Standards
Act
☐ 720 Labor/Mgmt. Relations
☐ 730 Labor/Mgmt. Reporting
& Disclosure Act
☐ 740 Railway Labor Act
☐ 790 Other Labor Litigation
☐ 791 Empl. Ret. Inc.
Security Act

SOCIAL SECURITY

- ☐ 861 HIA (1395ff)
☐ 862 Black Lung (923)
☐ 863 DIWC/DIWW (405(g))
☐ 864 SSID Title XVI
☐ 865 RSI (405(g))

FEDERAL TAX SUITS

- ☐ 870 Taxes (U.S. Plaintiff
or Defendant)
☐ 871 IRS—Third Party
26 USC 7609

- ☐ 400 State Reapportionment
☐ 410 Antitrust
☐ 430 Banks and Banking
☐ 450 Commerce
☐ 460 Deportation
☐ 470 Racketeer Influenced and
Corrupt Organizations
☐ 480 Consumer Credit
☐ 490 Cable/Sat TV
☐ 810 Selective Service
☐ 850 Securities/Commodities/
Exchange
☐ 875 Customer Challenge
12 USC 3410
☐ 890 Other Statutory Actions
☐ 891 Agricultural Acts
☐ 892 Economic Stabilization Act
☐ 893 Environmental Matters
☐ 894 Energy Allocation Act
☐ 895 Freedom of Information
Act
☐ 900 Appeal of Fee Determination
Under Equal Access
to Justice
☐ 950 Constitutionality of
State Statutes

REAL PROPERTY

- ☐ 210 Land Condemnation
☐ 220 Foreclosure
☐ 230 Rent Lease & Ejectment
☐ 240 Torts to Land
☐ 245 Tort Product Liability
☐ 290 All Other Real Property

CIVIL RIGHTS

- ☐ 441 Voting
☐ 442 Employment
☐ 443 Housing/
Accommodations
☐ 444 Welfare
☐ 445 Amer. w/Disabilities -
Employment
☐ 446 Amer. w/Disabilities -
Other
☒ 440 Other Civil Rights

PRISONER PETITIONS

- ☐ 510 Motions to Vacate
Sentence
Habeas Corpus:
☐ 530 General
☐ 535 Death Penalty
☐ 540 Mandamus & Other
☐ 550 Civil Rights
☐ 555 Prison Condition

V. ORIGIN

(Place an "X" in One Box Only)

☒ 1 Original
Proceeding☐ 2 Removed from
State Court☐ 3 Remanded from
Appellate Court☐ 4 Reinstated or
Reopened☐ 5 Transferred from
another district
(specify)☐ 6 Multidistrict
Litigation☐ 7 Appeal to District
Judge from
Magistrate
Judgment

VI. CAUSE OF ACTION

Cite the U.S. Civil Statute under which you are filing (Do not cite jurisdictional statutes unless diversity):
42 U.S.C. 1983Brief description of cause:
false arrest, excessive forceVII. REQUESTED IN
COMPLAINT:☐ CHECK IF THIS IS A CLASS ACTION
UNDER F.R.C.P. 23

DEMAND \$

CHECK YES only if demanded in complaint:

JURY DEMAND: ☒ Yes ☐ NoVIII. RELATED CASE(S)
IF ANY

(See instructions):

JUDGE

DOCKET NUMBER

DATE

SIGNATURE OF ATTORNEY OF RECORD

FOR OFFICE USE ONLY

RECEIPT #

AMOUNT

APPLYING IFP

JUDGE

WFK

MAG. JUDGE

RML

2030

ARBITRATION CERTIFICATION

I, David Zelman, Esq., counsel for Plaintiff _____ do hereby
certify pursuant to the Local Arbitration Rule 83.10 that to the best of my knowledge and belief the damages
recoverable in the above captioned civil action exceed the sum of \$150,000 exclusive of interest and costs.
_____ Relief other than monetary damages is sought.

DISCLOSURE STATEMENT - FEDERAL RULES CIVIL PROCEDURE 7.1

Identify any parent corporation and any publicly held corporation that owns 10% or more of its stocks:
none

Please refer to NY-E Division of Business Rule 50.1(d)(2)

1.) Is the civil action being filed in the Eastern District of New York removed from a New York State court located
in Nassau or Suffolk County? no

2.) If you answered "no" above:

a.) Did the events or omissions giving rise to the claim or claims, or a substantial part thereof, occur in Nassau
or Suffolk County? no

b.) Did the events or omissions giving rise to the claim or claims, or a substantial part thereof, occur in the
Eastern District? yes

If your answer to question 2 (b) is "No," does the defendant (or a majority of the defendants, if there is more than
one) reside in Nassau or Suffolk County, or, in an interpleader action, does the claimant (or a majority of the
claimants, if there is more than one) reside in Nassau or Suffolk County? _____

(Note: A corporation shall be considered a resident of the County in which it has the most significant contacts).

**I am currently admitted in the Eastern District of New York and currently a member in good standing of the
bar of this court.**

Yes ✓

No _____

Are you currently the subject of any disciplinary action(s) in this or any other state or federal court?

Yes _____ (If yes, please explain)

No ✓

Please provide your E-MAIL Address and bar code below. Your bar code consists of the initials of your first and last
name and the last four digits of your social security number or any other four digit number registered by the attorney
with the Clerk of Court.

(This information must be provided pursuant to local rule 11.1(b) of the civil rules).

ATTORNEY BAR CODE: DZ8578

E-MAIL Address: dzelman@civrtslaw.com

I consent to the use of electronic filing procedures adopted by the Court in Administrative Order No. 97-12, "In re
Electronic Filing Procedures (EFP)", and consent to the electronic service of all papers.

Signature: _____